

File No.: EXP202405760 (PA/00017/2024)

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 27, 2024. The complaint is directed against the ASOCIACIÓN CULTURAL MUSICAL LA FÁBRICA with NIF G95943510 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that her daughter has been enrolled as a student at the academy of the respondent, having completed an enrollment form that contained personal data of the student and her legal representatives, in this case, her parents, without having been informed, in the data collection form, or through any other means, about the processing of the collected data. The form is available on the website <http://centrolafabrica.com>, for which the respondent is responsible. She also points out that she has contacted the respondent to obtain information about the data controller and that such information has not been provided. Furthermore, she declares having consulted the website of the respondent without finding any clause regarding the collection and processing of personal data.

Along with the complaint, the following documentation is submitted:

- Copy of the email, dated March 8, 2024, sent by the complainant to the respondent, requesting information about the data protection policy and the identity of the data controller, and exercising the right of access provided for in Article 15 of Regulation (EU) 2016/679, General Data Protection Regulation (hereinafter, GDPR).

- Screenshot of the respondent's website where a spot can be reserved.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/05/2024, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail which was duly notified on 07/06/2024.

In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response was received to this forwarding letter.

THIRD: On June 27, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On October 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP by certified postal mail, was returned as "absent"; reiterating the forwarding by the same means, it was notified on 08/11/2024 as stated in the acknowledgment of receipt in the file.

SIXTH: On November 13, 2024, a written statement of allegations was received from the respondent in which the following considerations are made:

"In response to the complaint (...), we clarify that the Association complies with the GDPR and the LOPDGDD. Our Data Protection Policy is updated and accessible at www.centrolafabrica.com, detailing the data processing and the rights of the data subjects. We informed the complainant about this policy in a prior conversation."

The following supporting documentation is attached:

- Screenshot of the homepage of the respondent's website where their contact details (email and phone) and a link to the Privacy Policy appear.
- Two screenshots of the page to which the aforementioned link directs within the respondent's website. One captures the header of the page ("Privacy Policy. PRIVACY POLICY OF THE WEBSITE. <https://centrolafabrica.com>. I. PRIVACY POLICY AND DATA PROTECTION") and the other the Laws incorporated in this privacy policy.

In view of all that has transpired, the following facts are considered proven by the Spanish Agency for Data Protection in this proceeding,

C/ Jorge Juan, 6

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3/7

PROVEN FACTS

FIRST: The website <https://centrolafabrica.com>, belonging to a music school in which the daughter of the claimant is enrolled, did not provide, on the date of the claim, information related to the processing of personal data, as it lacked a privacy policy or equivalent legal text. This is evidenced by the screenshot of the website of the entity being claimed, dated 07/03/2024, which accompanies the claim letter and does not show any link or information related to the privacy policy. Similarly, based on the evidence gathered by this Agency, as of 09/04/2024, it is confirmed that the aforementioned website lacked a privacy policy and contained a registration form that collected personal data from students and, where applicable, their legal representatives.

SECOND: The entity being claimed has responded to the Initiation Agreement through a letter dated November 13, 2024, in which it informs that its Data Protection Policy is updated and accessible on the website for which it is responsible.

THIRD: Following the written allegations to the Initiation Agreement, submitted by the entity being claimed, it is noted that the website www.centrolafabrica.com has been updated to include its "Privacy Policy," which informs about the identity of the person responsible for it and other aspects related to the processing of personal data in accordance with the provisions of Article 13 of the GDPR. It can be accessed through the corresponding link available both in the registration form and at the bottom of the main page. Before being able to submit the registration form, the user must mandatory click on the box indicating that they have read and accepted the privacy policy.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

Response to the allegations presented

Regarding the allegations made against the initiation agreement of this warning procedure, described in the factual background SIXTH, this Agency positively values that the entity being claimed has taken measures to rectify the situation by adapting its website to Data Protection regulations. However, this does not invalidate the fact that on the date of the claim, the website of the entity being claimed lacked a privacy policy or equivalent legal text.

III

Unfulfilled obligation. Information that must be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, whereby:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

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5/7

- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;

- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, significant information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of limitation

In accordance with the established facts at this stage of the resolution of the warning procedure, it is considered that the respondent is responsible for the website <http://centrolafabrica.com>, a music school of which the complainant is a client. And on that website, no information related to the processing of personal data was provided on the date of the complaint, as it lacked a privacy policy or equivalent legal text.

The known facts constitute an infringement attributable to the respondent, as provided for in Article 13 of the GDPR, transcribed in the previous section.

Such infringement is classified under Article 83.5(b) of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22;”

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6/7

For the purposes of the limitation period for infringements, the infringement attributed shall be subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

“Article 72. Infringements considered very serious.

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.”

Consequently, it is considered that the known facts constitute an infringement attributable to the respondent for violation of the previously transcribed article.

V

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2(b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:

(...)

b) issue a warning to any controller or processor when their processing operations have infringed the provisions of this Regulation;

(...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” provides in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at putting an end to the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the file of actions shall occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

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7/7

In the present case, given the nature of the facts and the concurrent circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to the party being claimed for the infringement of the aforementioned article.

Therefore, in accordance with the applicable legislation and in light of the above, the Presidency of the Spanish Agency for Data Protection,

RESOLVES:

FIRST: TO WARN the CULTURAL MUSICAL ASSOCIATION LA FÁBRICA, with NIF G95943510, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO NOTIFY this resolution to the CULTURAL MUSICAL ASSOCIATION LA FÁBRICA.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
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28001 – Madrid
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